

Note: Before applying for this Policy, please read carefully the terms and conditions of this Policy, especially the **exclusions** highlighted in shadow. If you have any query, please contact your broker or call us, otherwise you are deemed to fully understand and accept the terms and conditions of this Policy.

COMMERCIAL GENERAL LIABILITY

CG 00 01 12 04

COMMERCIAL GENERAL LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured under this policy. Unless otherwise provided in this policy, the first Named Insured shown in the Declarations shall be the Policyholder. The words "we", "us" and "our" refer to the Company providing this insurance. The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

SECTION I – COVERAGES

COVERAGE A BODILY INJURY AND PROPERTY DAMAGE LIABILITY

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

- b. This insurance applies to "bodily injury" and "property damage" only if:

- (1) The "bodily injury" or "property damage" is caused by an "occurrence" that takes place in the "coverage territory";
- (2) The "bodily injury" or "property damage" occurs during the policy period; and
- (3) Prior to the policy period, no insured listed under Paragraph 1. of Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "occurrence" or claim, knew that the "bodily injury" or "property damage" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "bodily injury" or "property damage" occurred, then any continuation, change or resumption of such "bodily injury" or "property damage" during or after the policy period will be deemed to have been known prior to the policy period.

- c. "Bodily injury" or "property damage" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim, includes any continuation, change or resumption of that "bodily injury" or "property damage" after the end of the policy period.

- d. "Bodily injury" or "property damage" will be deemed to have been known to have occurred at the earliest time when any insured listed under Paragraph 1. of Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "occurrence" or claim:

- (1) Reports all, or any part, of the "bodily injury" or "property damage" to us or any other insurer;
- (2) Receives a written or verbal demand or claim for damages because of the "bodily injury" or "property damage"; or
- (3) Becomes aware by any other means that "bodily injury" or "property damage" has occurred or has begun to occur.

- e. Damages because of "bodily injury" include damages claimed by any person or organization for care, loss of services or death resulting at any time from the "bodily injury".

2. Exclusions

This insurance does not apply to:

a. Expected Or Intended Injury

"Bodily injury" or "property damage" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

b. Contractual Liability

"Bodily injury" or "property damage" for which the insured is obligated to pay damages by reason of the assumption of liability in a contract or agreement. This exclusion does not apply to liability for damages:

- (1) That the insured would have in the absence of the contract or agreement; or
- (2) Assumed in a contract or agreement that is an "insured contract", provided the "bodily injury" or "property damage" occurs subsequent to the execution of the contract or agreement. Solely for the purposes of liability assumed in an "insured contract", reasonable attorney fees and necessary litigation expenses incurred by or for a party other than an insured are deemed to be damages because of "bodily injury" or "property damage", provided:
 - (a) Liability to such party for, or for the cost of, that party's defense has also been assumed in the same "insured contract"; and
 - (b) Such attorney fees and litigation expenses are for defense of that party against a civil or alternative dispute resolution proceeding in which damages to which this insurance applies are alleged.

c. Liquor Liability

"Bodily injury" or "property damage" for which any insured may be held liable by reason of:

- (1) Causing or contributing to the intoxication of any person;
- (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
- (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

This exclusion applies only if you are in the business of manufacturing, distributing, selling, serving or furnishing alcoholic beverages.

d. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers'

compensation, disability benefits or unemployment compensation law or any similar law.

e. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured's business; or
- (2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph (1) above.

This exclusion applies:

- (1) Whether the insured may be liable as an employer or in any other capacity; and
- (2) To any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability assumed by the insured under an "insured contract".

f. Pollution

- (1) "Bodily injury" or "property damage" arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, re-lease or escape of "pollutants":
 - (a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:
 - (i) "Bodily injury" if sustained within a building and caused by smoke, fumes, vapor or soot produced by or originating from equipment that is used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;
 - (ii) "Bodily injury" or "property damage" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
 - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire";
 - (b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;

- (c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
 - (i) Any insured; or
 - (ii) Any person or organization for whom you may be legally responsible; or
- (d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:
 - (i) "Bodily injury" or "property damage" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of "mobile equipment" or its parts, if such fuels, lubricants or other operating fluids escape from a vehicle part designed to hold, store or receive them. This exception does not apply if the "bodily injury" or "property damage" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - (ii) "Bodily injury" or "property damage" sustained within a building and caused by the release of gases, fumes or vapors from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or
 - (iii) "Bodily injury" or "property damage" arising out of heat, smoke or fumes from a "hostile fire".
- (e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".
- (2) Any loss, cost or expense arising out of any:
 - (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
 - (b) Claim or "suit" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of,

"pollutants".

However, this paragraph does not apply to liability for damages because of "property damage" that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "suit" by or on behalf of a governmental authority.

g. Aircraft, Auto Or Watercraft

"Bodily injury" or "property damage" arising out of the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft owned or operated by or rented or loaned to any insured. Use includes operation and "loading or unloading".

This exclusion applies even if the claims against any insured allege negligence or other wrongdoing in the supervision, hiring, employment, training or monitoring of others by that insured, if the "occurrence" which caused the "bodily injury" or "property damage" involved the ownership, maintenance, use or entrustment to others of any aircraft, "auto" or watercraft that is owned or operated by or rented or loaned to any insured.

This exclusion does not apply to:

- (1) A watercraft while ashore on premises you own or rent;
- (2) A watercraft you do not own that is:
 - (a) Less than 26 feet long; and
 - (b) Not being used to carry persons or property for a charge;
- (3) Parking an "auto" on, or on the ways next to, premises you own or rent, provided the "auto" is not owned by or rented or loaned to you or the insured;
- (4) Liability assumed under any "insured contract" for the ownership, maintenance or use of aircraft or watercraft; or
- (5) "Bodily injury" or "property damage" arising out of:
 - (a) The operation of machinery or equipment that is attached to, or part of, a land vehicle that would qualify under the definition of "mobile equipment" if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or principally garaged; or
 - (b) the operation of any of the machinery or equipment listed in Paragraph f.(2) or f.(3) of the definition of "mobile equipment".

h. Mobile Equipment

"Bodily injury" or "property damage" arising out of:

- (1) The transportation of "mobile equipment" by an "auto" owned or operated by or rented or loaned to any insured; or
- (2) The use of "mobile equipment" in, or while in practice for, or while being prepared for, any prearranged racing, speed, demolition, or stunting

activity.

i. War

"Bodily injury" or "property damage", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

j. Damage To Property

"Property damage" to:

- (1) Property you own, rent, or occupy, including any costs or expenses incurred by you, or any other person, organization or entity, for repair, replacement, enhancement, restoration or maintenance of such property for any reason, including prevention of injury to a person or damage to another's property;
- (2) Premises you sell, give away or abandon, if the "property damage" arises out of any part of those premises;
- (3) Property loaned to you;
- (4) Personal property in the care, custody or control of the insured;
- (5) That particular part of real property on which you or any contractors or subcontractors working directly or indirectly on your behalf are performing operations, if the "property damage" arises out of those operations; or
- (6) That particular part of any property that must be restored, repaired or replaced because "your work" was incorrectly performed on it.

Paragraphs (1), (3) and (4) of this exclusion do not apply to "property damage" (other than damage by fire) to premises, including the contents of such premises, rented to you for a period of 7 or fewer consecutive days. A separate limit of insurance applies to Damage To Premises Rented To You as described in Section III – Limits Of Insurance.

Paragraph (2) of this exclusion does not apply if the premises are "your work" and were never occupied, rented or held for rental by you.

Paragraphs (3), (4), (5) and (6) of this exclusion do not apply to liability assumed under a side-track agreement.

Paragraph (6) of this exclusion does not apply to "property damage" included in the "products-completed operations hazard".

k. Damage To Your Product

"Property damage" to "your product" arising out of it or any part of it.

l. Damage To Your Work

"Property damage" to "your work" arising out of it or any part of it and included in the "products-completed operations hazard".

This exclusion does not apply if the damaged work or the work out of which the damage arises was performed on your behalf by a subcontractor.

m. Damage To Impaired Property Or Property Not Physically Injured

"Property damage" to "impaired property" or property that has not been physically injured, arising out of:

- (1) A defect, deficiency, inadequacy or dangerous condition in "your product" or "your work"; or
- (2) A delay or failure by you or anyone acting on your behalf to perform a contract or agreement in accordance with its terms.

This exclusion does not apply to the loss of use of other property arising out of sudden and accidental physical injury to "your product" or "your work" after it has been put to its intended use.

n. Recall Of Products, Work Or Impaired Property

Damages claimed for any loss, cost or expense incurred by you or others for the loss of use, withdrawal, recall, inspection, repair, replacement, adjustment, removal or disposal of:

- (1) "Your product";
- (2) "Your work"; or
- (3) "Impaired property";

if such product, work, or property is withdrawn or recalled from the market or from use by any person or organization because of a known or suspected defect, deficiency, inadequacy or dangerous condition in it.

o. Personal And Advertising Injury

"Bodily injury" arising out of "personal and advertising injury".

p. Electronic Data

Damages arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate electronic data.

As used in this exclusion, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

Exclusions c. through n. do not apply to damage by fire to premises while rented to you or temporarily occupied by you with permission of the owner. A separate limit of insurance applies to this coverage as described in Section III – Limits Of Insurance.

COVERAGE B PERSONAL AND ADVERTISING INJURY LIABILITY

1. Insuring Agreement

a. We will pay those sums that the insured be-

comes legally obligated to pay as damages because of "personal and advertising injury" to which this insurance applies. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured against any "suit" seeking damages for "personal and advertising injury" to which this insurance does not apply. We may, at our discretion, investigate any offense and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements under Coverages A or B or medical expenses under Coverage C.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments – Coverages A and B.

- b. This insurance applies to "personal and advertising injury" caused by an offense arising out of your business but only if the offense was committed in the "coverage territory" during the policy period.

2. Exclusions

This insurance does not apply to:

a. Knowing Violation Of Rights Of Another

"Personal and advertising injury" caused by or at the direction of the insured with the knowledge that the act would violate the rights of another and would inflict "personal and advertising injury".

b. Material Published With Knowledge Of Falsity

"Personal and advertising injury" arising out of oral or written publication of material, if done by or at the direction of the insured with knowledge of its falsity.

c. Material Published Prior To Policy Period

"Personal and advertising injury" arising out of oral or written publication of material whose first publication took place before the beginning of the policy period.

d. Criminal Acts

"Personal and advertising injury" arising out of a criminal act committed by or at the direction of the insured.

e. Contractual Liability

"Personal and advertising injury" for which the insured has assumed liability in a contract or agreement. This exclusion does not apply to liability for damages that the insured would have in the absence of the contract or agreement.

f. Breach Of Contract

"Personal and advertising injury" arising out of a breach of contract, except an implied contract to use another's advertising idea in your "advertisement".

g. Quality Or Performance Of Goods – Failure To Conform To Statements

"Personal and advertising injury" arising out of the failure of goods, products or services to conform with any statement of quality or performance made in your "advertisement".

h. Wrong Description Of Prices

"Personal and advertising injury" arising out of the wrong description of the price of goods, products or services stated in your "advertisement".

i. Infringement Of Copyright, Patent, Trademark Or Trade Secret

"Personal and advertising injury" arising out of the infringement of copyright, patent, trademark, trade secret or other intellectual property rights. However, this exclusion does not apply to infringement, in your "advertisement", of copy right, trade dress or slogan.

j. Insureds In Media And Internet Type Businesses

"Personal and advertising injury" committed by an insured whose business is:

- (1) Advertising, broadcasting, publishing or telecasting;
- (2) Designing or determining content of web sites for others; or
- (3) An Internet search, access, content or service provider.

However, this exclusion does not apply to Paragraphs 14.a., b. and c. of "personal and advertising injury" under the Definitions Section. For the purposes of this exclusion, the placing of frames, borders or links, or advertising, for you or others anywhere on the Internet, is not by itself, considered the business of advertising, broadcasting, publishing or telecasting.

k. Electronic Chatrooms Or Bulletin Boards

"Personal and advertising injury" arising out of an electronic chatroom or bulletin board the insured hosts, owns, or over which the insured exercises control.

l. Unauthorized Use Of Another's Name Or Product

"Personal and advertising injury" arising out of the unauthorized use of another's name or product in your e-mail address, domain name or metatag, or any other similar tactics to mislead another's potential customers.

m. Pollution

"Personal and advertising injury" arising out of the

actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of "pollutants" at any time.

n. Pollution-Related

Any loss, cost or expense arising out of any:

- (1) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
- (2) Claim or suit by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

o. War

"Personal and advertising injury", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

COVERAGE C MEDICAL PAYMENTS

1. Insuring Agreement

- a. We will pay medical expenses as described below for "bodily injury" caused by an accident:
 - (1) On premises you own or rent;
 - (2) On ways next to premises you own or rent; or
 - (3) Because of your operations;provided that:
 - (1) The accident takes place in the "coverage territory" and during the policy period;
 - (2) The expenses are incurred and reported to us within one year of the date of the accident; and
 - (3) The injured person submits to examination, at our expense, by physicians of our choice as often as we reasonably require.
- b. We will make these payments regardless of fault. These payments will not exceed the applicable limit of insurance. We will pay reasonable expenses for:
 - (1) First aid administered at the time of an accident;
 - (2) Necessary medical, surgical, x-ray and dental

services, including prosthetic devices; and

- (3) Necessary ambulance, hospital, professional nursing and funeral services.

2. Exclusions

We will not pay expenses for "bodily injury":

a. Any Insured

To any insured, except "volunteer workers".

b. Hired Person

To a person hired to do work for or on behalf of any insured or a tenant of any insured.

c. Injury On Normally Occupied Premises

To a person injured on that part of premises you own or rent that the person normally occupies.

d. Workers Compensation And Similar Laws

To a person, whether or not an "employee" of any insured, if benefits for the "bodily injury" are payable or must be provided under a workers' compensation or disability benefits law or a similar law.

e. Athletics Activities

To a person injured while practicing, instructing or participating in any physical exercises or games, sports, or athletic contests.

f. Products-Completed Operations Hazard

Included within the "products-completed operations hazard".

g. Coverage A Exclusions

Excluded under Coverage A.

SUPPLEMENTARY PAYMENTS – COVERAGES A AND B

1. We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:
 - a. All expenses we incur.
 - b. Up to \$250 for cost of bail bonds required because of accidents or traffic law violations arising out of the use of any vehicle to which the Bodily Injury Liability Coverage applies. We do not have to furnish these bonds.
 - c. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
 - d. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to \$250 a day because of time off from work.
 - e. All costs taxed against the insured in the "suit".
 - f. Prejudgment interest awarded against the insured on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

- g. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.

These payments will not reduce the limits of insurance.

2. If we defend an insured against a "suit" and an indemnitee of the insured is also named as a party to the "suit", we will defend that indemnitee if all of the following conditions are met:

- a. The "suit" against the indemnitee seeks damages for which the insured has assumed the liability of the indemnitee in a contract or agreement that is an "insured contract";
- b. This insurance applies to such liability assumed by the insured;
- c. The obligation to defend, or the cost of the defense of, that indemnitee, has also been assumed by the insured in the same "insured contract";
- d. The allegations in the "suit" and the information we know about the "occurrence" are such that no conflict appears to exist between the interests of the insured and the interests of the indemnitee;
- e. The indemnitee and the insured ask us to conduct and control the defense of that indemnitee against such "suit" and agree that we can assign the same counsel to defend the insured and the indemnitee; and
- f. The indemnitee:

- (1) Agrees in writing to:

- (a) Cooperate with us in the investigation, settlement or defense of the "suit";
- (b) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the "suit";
- (c) Notify any other insurer whose coverage is available to the indemnitee; and
- (d) Cooperate with us with respect to coordinating other applicable insurance available to the indemnitee; and

- (2) Provides us with written authorization to:

- (a) Obtain records and other information related to the "suit"; and
- (b) Conduct and control the defense of the indemnitee in such "suit".

So long as the above conditions are met, attorneys' fees incurred by us in the defense of that indemnitee, necessary litigation expenses incurred by us and necessary litigation expenses incurred by the indemnitee at our request will be paid as Supplementary Payments. Notwithstanding the provisions of Paragraph **2.b.(2)** of Section **I – Coverage A – Bodily Injury And Property Damage Li-**

ability, such payments will not be deemed to be damages for "bodily injury" and "property damage" and will not reduce the limits of insurance.

Our obligation to defend an insured's indemnitee and to pay for attorneys' fees and necessary litigation expenses as Supplementary Payments ends when:

- a. We have used up the applicable limit of insurance in the payment of judgments or settlements; or
- b. The conditions set forth above, or the terms of the agreement described in Paragraph **f.** above, are no longer met.

SECTION II – WHO IS AN INSURED

1. If you are designated in the Declarations as:

- a. An individual, you and your spouse are insureds, but only with respect to the conduct of a business of which you are the sole owner.
- b. A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
- c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.
- d. An organization other than a partnership, joint venture or limited liability company, you are an insured. Your "executive officers" and directors are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.
- e. A trust, you are an insured. Your trustees are also insureds, but only with respect to their duties as trustees.

2. Each of the following is also an insured:

- a. Your "volunteer workers" only while performing duties related to the conduct of your business, or your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" or "volunteer workers" are insureds for:

- (1) "Bodily injury" or "personal and advertising injury":

- (a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), to a co-"employee" while in the course of his or her employment or performing duties related to the conduct of your business, or to your other "volunteer

workers" while performing duties related to the conduct of your business;

(b) To the spouse, child, parent, brother or sister of that co-"employee" or "volunteer worker" as a consequence of Paragraph (1)(a) above;

(c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs (1)(a) or (b) above; or

(d) Arising out of his or her providing or failing to provide professional health care services.

(2) "Property damage" to property:

(a) Owned, occupied or used by,

(b) Rented to, in the care, custody or control of, or over which physical control is being exercised for any purpose by

you, any of your "employees", "volunteer workers", any partner or member (if you are a partnership or joint venture), or any member (if you are a limited liability company).

b. Any person (other than your "employee" or "volunteer worker"), or any organization while acting as your real estate manager.

c. Any person or organization having proper temporary custody of your property if you die, but only:

(1) With respect to liability arising out of the maintenance or use of that property; and

(2) Until your legal representative has been appointed.

d. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.

3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:

a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier;

b. Coverage A does not apply to "bodily injury" or "property damage" that occurred before you acquired or formed the organization; and

c. Coverage B does not apply to "personal and advertising injury" arising out of an offense committed before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a

Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:

a. Insureds;

b. Claims made or "suits" brought; or

c. Persons or organizations making claims or bringing "suits".

2. The General Aggregate Limit is the most we will pay for the sum of:

a. Medical expenses under Coverage C;

b. Damages under Coverage A, except damages because of "bodily injury" or "property damage" included in the "products-completed operations hazard"; and

c. Damages under Coverage B.

3. The Products-Completed Operations Aggregate Limit is the most we will pay under Coverage A for damages because of "bodily injury" and "property damage" included in the "products-completed operations hazard".

4. Subject to 2. above, the Personal and Advertising Injury Limit is the most we will pay under Coverage B for the sum of all damages because of all "personal and advertising injury" sustained by any one person or organization.

5. Subject to 2. or 3. above, whichever applies, the Each Occurrence Limit is the most we will pay for the sum of:

a. Damages under Coverage A; and

b. Medical expenses under Coverage C because of all "bodily injury" and "property damage" arising out of any one "occurrence".

6. Subject to 5. above, the Damage To Premises Rented To You Limit is the most we will pay under Coverage A for damages because of "property damage" to any one premises, while rented to you, or in the case of damage by fire, while rented to you or temporarily occupied by you with permission of the owner.

7. Subject to 5. above, the Medical Expense Limit is the most we will pay under Coverage C for all medical expenses because of "bodily injury" sustained by any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this Coverage Part.

2. Duties In The Event Of Occurrence, Offense, Claim Or Suit

a. You must see to it that we are notified as soon as practicable of an "occurrence" or an offense which may result in a claim. To the extent possible, notice should include:

- (1) How, when and where the "occurrence" or offense took place;
- (2) The names and addresses of any injured persons and witnesses; and
- (3) The nature and location of any injury or damage arising out of the "occurrence" or offense.

b. If a claim is made or "suit" is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or "suit" and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

c. You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured because of injury or damage to which this insurance may also apply.

d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

e. If insured deliberately or through its gross negligence fails to discharge its obligations prescribed in a. and b. above that our ability to determine the nature, cause and degree of damage and any other relevant circumstances of an "occurrence" or claim or "suit" is compromised, we shall not be liable for that proportion of the loss that could not thus be determined, unless we have known or should have known of the "occurrence" or claim or "suit" in a timely manner through other channels.

3. Legal Action Against Us

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the insured for a loss we cover under Coverages A or B of this Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary except when b. below applies. If this insurance is primary, our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in c. below.

b. Excess Insurance

This insurance is excess over:

- (1) Any of the other insurance, whether primary, excess, contingent or on any other basis:
 - (a) That is Fire, Extended Coverage, Builder's Risk, Installation Risk or similar coverage for "your work";
 - (b) That is Fire insurance for premises rented to you or temporarily occupied by you with permission of the owner;
 - (c) That is insurance purchased by you to cover your liability as a tenant for "property damage" to premises rented to you or temporarily occupied by you with permission of the owner; or
 - (d) If the loss arises out of the maintenance or use of aircraft, "autos" or watercraft to the extent not subject to Exclusion g. of Section I – Coverage A – Bodily Injury And Property Damage Liability.
- (2) Any other primary insurance available to you covering liability for damages arising out of the premises or operations, or the products and completed operations, for which you have been added as an additional insured by attachment of an endorsement.

When this insurance is excess, we will have no duty under Coverages A or B to defend the insured against any "suit" if any other insurer has a duty to defend the insured against that "suit". If no other insurer defends, we will undertake to do so, but we will be entitled to the insured's rights against all those other insurers.

When this insurance is excess over other insurance, we will pay only our share of the amount of the loss, if any, that exceeds the sum of:

- (1) The total amount that all such other insurance would pay for the loss in the absence of this insurance; and
- (2) The total of all deductible and self-insured amounts under all that other insurance.

We will share the remaining loss, if any, with any other insurance that is not described in this Excess Insurance provision and was not bought specifically to apply in excess of the Limits of Insurance shown in the Declarations of this Coverage Part.

c. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.
- b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned premium, we will return the excess to the first Named Insured.
- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

- a. The statements in the Declarations are accurate and complete;
- b. Those statements are based upon representations you made to us; and
- c. We have issued this policy in reliance upon your representations.

7. Separation Of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured; and

- b. Separately to each insured against whom claim is made or "suit" is brought.

8. Transfer Of Rights Of Recovery Against Others To Us

If the insured has rights to recover all or part of any payment we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

9. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

10. Limitation Of Action

The limitation of action for an insured to make a claim against us shall be two years, subject to the law applicable to this policy.

11. Contractual Dispute Resolution

It is agreed that should any dispute arise concerning this policy, the dispute will be determined in accordance with the laws of the People's Republic of China.

In relation to any such dispute, the parties in the policy shall use their best efforts to reach amicable settlement through negotiation. In case of failure to reach a settlement through negotiation, the dispute shall be submitted to the arbitration authority stated in the Declarations for arbitration. If there is no arbitration authority agreed in the Declarations and no arbitration agreement is reached after the dispute arises, the dispute shall be submitted to the people's court of the People's Republic of China for litigation.

SECTION V – DEFINITIONS

1. "Advertisement" means a notice that is broadcast or published to the general public or specific market segments about your goods, products or services for the purpose of attracting customers or supporters. For the purposes of this definition:
 - a. Notices that are published include material placed on the Internet or on similar electronic means of communication; and
 - b. Regarding web-sites, only that part of a web-site that is about your goods, products or services for the purposes of attracting customers or supporters is considered an advertisement.
2. "Auto" means:
 - a. A land motor vehicle, trailer or semitrailer designed for travel on public roads, including any attached machinery or equipment; or
 - b. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it

is licensed or principally garaged.

However, "auto" does not include "mobile equipment".

3. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.
4. "Coverage territory" means:
 - a. The United States of America (including its territories and possessions), Puerto Rico and Canada;
 - b. International waters or airspace, but only if the injury or damage occurs in the course of travel or transportation between any places included in a. above; or
 - c. All other parts of the world if the injury or damage arises out of:
 - (1) Goods or products made or sold by you in the territory described in a. above;
 - (2) The activities of a person whose home is in the territory described in a. above, but is away for a short time on your business; or
 - (3) "Personal and advertising injury" offenses that take place through the Internet or similar electronic means of communicationprovided the insured's responsibility to pay damages is determined in a "suit" on the merits, in the territory described in a. above or in a settlement we agree to.
5. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
6. "Executive officer" means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.
7. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.
8. "Impaired property" means tangible property, other than "your product" or "your work", that cannot be used or is less useful because:
 - a. It incorporates "your product" or "your work" that is known or thought to be defective, deficient, inadequate or dangerous; or
 - b. You have failed to fulfill the terms of a contract or agreement;if such property can be restored to use by:
 - a. The repair, replacement, adjustment or removal of "your product" or "your work"; or
 - b. Your fulfilling the terms of the contract or agreement.
9. "Insured contract" means:
 - a. A contract for a lease of premises. However, that portion of the contract for a lease of premises that indemnifies any person or organization for damage by fire to premises while rented to you or temporarily occupied by you with permission of

the owner is not an "insured contract";

- b. A sidetrack agreement;
 - c. Any easement or license agreement, except in connection with construction or demolition operations on or within 50 feet of a railroad;
 - d. An obligation, as required by ordinance, to indemnify a municipality, except in connection with work for a municipality;
 - e. An elevator maintenance agreement;
 - f. That part of any other contract or agreement pertaining to your business (including an indemnification of a municipality in connection with work performed for a municipality) under which you assume the tort liability of another party to pay for "bodily injury" or "property damage" to a third person or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement. Paragraph f. does not include that part of any contract or agreement:
 - (1) That indemnifies a railroad for "bodily injury" or "property damage" arising out of construction or demolition operations, within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;
 - (2) That indemnifies an architect, engineer or surveyor for injury or damage arising out of:
 - (a) Preparing, approving, or failing to prepare or approve, maps, shop drawings, opinions, reports, surveys, field orders, change orders or drawings and specifications; or
 - (b) Giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage; or
 - (3) Under which the insured, if an architect, engineer or surveyor, assumes liability for an injury or damage arising out of the insured's rendering or failure to render professional services, including those listed in (2) above and supervisory, inspection, architectural or engineering activities.
10. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".
11. "Loading or unloading" means the handling of property:
 - a. After it is moved from the place where it is accepted for movement into or onto an aircraft, watercraft or "auto";
 - b. While it is in or on an aircraft, watercraft or "auto"; or
 - c. While it is being moved from an aircraft, water-

craft or "auto" to the place where it is finally delivered;

but "loading or unloading" does not include the movement of property by means of a mechanical device, other than a hand truck, that is not attached to the aircraft, watercraft or "auto".

12. "Mobile equipment" means any of the following types of land vehicles, including any attached machinery or equipment:

- a. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
- b. Vehicles maintained for use solely on or next to premises you own or rent;
- c. Vehicles that travel on crawler treads;
- d. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - (1) Power cranes, shovels, loaders, diggers or drills; or
 - (2) Road construction or resurfacing equipment such as graders, scrapers or rollers;
- e. Vehicles not described in **a.**, **b.**, **c.** or **d.** above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - (1) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment; or
 - (2) Cherry pickers and similar devices used to raise or lower workers;
- f. Vehicles not described in **a.**, **b.**, **c.** or **d.** above maintained primarily for purposes other than the transportation of persons or cargo.
However, self-propelled vehicles with the following types of permanently attached equipment are not "mobile equipment" but will be considered "autos":

- (1) Equipment designed primarily for:
 - (a) Snow removal;
 - (b) Road maintenance, but not construction or resurfacing; or
 - (c) Street cleaning;
- (2) Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
- (3) Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well servicing equipment.

However, "mobile equipment" does not include any land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law in the state where it is licensed or

principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered "autos".

13. "Occurrence" means an accident, including continuous or repeated exposure to substantially the same general harmful conditions.

14. "Personal and advertising injury" means injury, including consequential "bodily injury", arising out of one or more of the following offenses:

- a. False arrest, detention or imprisonment;
- b. Malicious prosecution;
- c. The wrongful eviction from, wrongful entry into, or invasion of the right of private occupancy of a room, dwelling or premises that a person occupies, committed by or on behalf of its owner, landlord or lessor;
- d. Oral or written publication, in any manner, of material that slanders or libels a person or organization or disparages a person's or organization's goods, products or services;
- e. Oral or written publication, in any manner, of material that violates a person's right of privacy;
- f. The use of another's advertising idea in your "advertisement"; or
- g. Infringing upon another's copyright, trade dress or slogan in your "advertisement".

15. "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.

16. "Products-completed operations hazard":

- a. Includes all "bodily injury" and "property damage" occurring away from premises you own or rent and arising out of "your product" or "your work" except:

(1) Products that are still in your physical possession; or

(2) Work that has not yet been completed or abandoned. However, "your work" will be deemed completed at the earliest of the following times:

- (a) When all of the work called for in your contract has been completed.
- (b) When all of the work to be done at the job site has been completed if your contract calls for work at more than one job site.
- (c) When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service, maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

b. Does not include "bodily injury" or "property damage" arising out of:

- (1) The transportation of property, unless the injury or damage arises out of a condition in or on a vehicle not owned or operated by you, and that condition was created by the "loading or unloading" of that vehicle by any insured;
- (2) The existence of tools, uninstalled equipment or abandoned or unused materials; or
- (3) Products or operations for which the classification, listed in the Declarations or in a policy schedule, states that products-completed operations are subject to the General Aggregate Limit.

17. "Property damage" means:

- a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
- b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the "occurrence" that caused it.

For the purposes of this insurance, electronic data is not tangible property.

As used in this definition, electronic data means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMs, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.

18. "Suit" means a civil proceeding in which damages because of "bodily injury", "property damage" or "personal and advertising injury" to which this insurance applies are alleged. "Suit" includes:

- a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
- b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.

19. "Temporary worker" means a person who is furnished to you to substitute for a permanent

"employee" on leave or to meet seasonal or short-term workload conditions.

20. "Volunteer worker" means a person who is not your "employee", and who donates his or her work and acts at the direction of and within the scope of duties determined by you, and is not paid a fee, salary or other compensation by you or anyone else for their work performed for you.

21. "Your product":

a. Means:

- (1) Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - (a) You;
 - (b) Others trading under your name; or
 - (c) A person or organization whose business or assets you have acquired; and
- (2) Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes

- (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product"; and
- (2) The providing of or failure to provide warnings or instructions.

c. Does not include vending machines or other property rented to or located for the use of others but not sold.

22. "Your work":

a. Means:

- (1) Work or operations performed by you or on your behalf; and
- (2) Materials, parts or equipment furnished in connection with such work or operations.

b. Includes

- (1) Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your work", and
- (2) The providing of or failure to provide warnings or instructions.

附加险

安盛天平附加保费调整保险条款

(注册号: C00007830922020082800102)

经双方同意,如果本保险单的保费是根据投保人订立保险合同时提供之被保险人的预估数据计算而得,则被保险人须妥善保存与本保险单相关项目的所有数据纪录,并允许保险人随时查阅。

在本保险合同到期后的一个月內,被保险人须按保险人要求提供上述项目的所有最终数据。

保险人将据此数据计算、调整保险费,预付保险费多退少补,但受本附加险下述所列之最低保费限制。

最低保费: 预付保费的约定比例。

本附加险条款所指的最低保费,由投保人与保险人协商确定,并在保险单中载明。

本附加险条款与主险条款相抵触之处,以本附加险条款为准;本附加险条款未约定事项,以主险条款为准。主险条款效力终止,本附加险条款效力亦同时终止;主险条款无效,本附加险条款亦无效。

AXATP premium adjustment clause

It is hereby declared and agreed that if the premium of this policy is calculated based on the estimated data of the insured provided by the applicant when entering into the insurance contract, the insured shall properly keep all data records related to this policy and allow the insurer to check them at any time.

Within one month after the expiration of this insurance contract, the insured shall provide all final data of the above items as required by the insurer.

The insurer will calculate and adjust the premium based on this data, refund the excess premium and make up the deficiency in the prepaid premium, but subject to the minimum premium listed below in this additional insurance.

Minimum premium: the agreed proportion of prepaid premium.

The minimum premium referred to in this additional insurance clause shall be determined through consultation between the applicant and the insurer and shall be specified in the insurance policy.

In case of any conflict between the additional insurance clause and the main insurance clause, the additional insurance clause shall

prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid.

安盛天平附加抗辩义务保险条款

(注册号: C00007830922020082800162)

兹经双方同意, 对于属于保险责任范围内的, 保险人将有权且有义务, 以被保险人的名义以及代表被保险人在被保险人被提起的人身伤害或财产损失的诉讼案件或仲裁案件中进行抗辩, 并且被保险人有权以其认为有利的方式自行对任何索赔、诉讼或仲裁进行调查、协商和和解。但是, 对非主险条款承保的人身伤害或财产损失而提出的索赔、诉讼或仲裁, 保险人不负抗辩义务。

当保险人为履行上述抗辩义务所支出的法律费用达到保险单或批单载明的对应赔偿限额时, 保险人上述进行抗辩的义务即行终止。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

AXATP Duty to Defend Extension Clause

It is understood and agreed that the Insurer shall have the right and obligation to defend in the name of the Insured and in the case of bodily injury or property damage brought by the Insured on behalf of the Insured, and the Insured shall have the right to investigate, negotiate and settle any claim, action or arbitration in such manner as it considers favorable. However, the insurer is not obliged to defend claims, actions or arbitrations for bodily injury or property damage covered by non-main insurance provisions.

The insurer's obligation to defend is terminated when the legal expenses spent by the insurer in fulfilling the above-mentioned defence obligations reach the corresponding compensation limit set forth in the insurance policy or approval.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the terminated, and the validity of this extension clause shall be terminated at the same time, and the main insurance clause shall be invalid and the terms of this extension clause shall be invalid.

安盛天平附加免赔额保险条款

(注册号: C00007830922020082709541)

兹经双方同意,当保险单明细表中列明免赔额时,保险单项下的每次事故均适用列明的免赔额。免赔额包括法律成本和费用。

若本保险单项下有超过一个免赔额适用于由一个事件引起的多项责任,或一系列责任,保险人按照如下约定进行赔偿:

1. 保险人将按照免赔额额度最高的一项进行实际赔偿金额的计算
2. 多项免赔额不累加计算,仅以最高者为准

本附加险条款与主险条款相抵触之处,以本附加险条款为准;本附加险条款未约定事项,以主险条款为准。主险条款效力终止,本附加险条款效力亦同时终止;主险条款无效,本附加险条款亦无效。

AXATP deductible clause

It is hereby declared and agreed that when the deductible is listed in the schedule of the insurance policy, the deductible listed shall apply to each accident under the insurance policy. Deductibles include legal costs and expenses.

If more than one deductible under this policy is applicable to multiple liabilities or a series of liabilities arising from one event, the insurer shall compensate as follows:

- 1 The insurer will calculate the actual compensation amount according to the highest deductible amount
- 2 Multiple deductibles are not accumulated, and only the highest one shall prevail

In case of any conflict between the additional insurance clause and the main insurance clause, the additional insurance clause shall prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid.

安盛天平附加被保险产品保险条款

(注册号: C00007830922020082709501)

兹经双方同意,本保险仅保障因明细表中“被保险人的产品”所列明的产品所产生的或导致的或以任何方式与之相关的损失或责任。

对于任何因明细表中未列出的产品所直接或间接地产生的或导致的或以任何方式与之相关的索赔,保险人对该类索赔的损失和赔

偿责任，不论是实际的还是被指称的，都不负责赔偿。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP insured product clauses

It is hereby declared and agreed that this insurance only covers the loss or liability arising from or caused by or in any way related to the products listed in the "products of the insured" in the schedule.

The insurer shall not be liable for any loss or liability, whether actual or alleged, arising directly or indirectly from or arising out of or in any way related to any claim arising out of products not listed in the schedule.

In case of any conflict between the additional insurance clause and the main insurance clause, the additional insurance clause shall prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid.

安盛天平附加多宗索赔归一保险

（注册号 C00007830922022081117813）

第一条 任何符合下列条件的“人身伤害”或“财产损失”应被视为一次“意外事故”：

1. 包含于“产品危险”；且
2. 由同一有害条件、原因、瑕疵、错误或缺陷；且
3. 由被保险人制造或获得的同一“批次”产品导致的。

该“意外事故”发生时间以对该“批次”产品提出首个“人身伤害”或“财产损失”索赔时间为准。

第二条 本附加险条款中，“批次”是指符合以下条件的商品或产品：

1. 是在符合被保险人惯用工序要求的时间内一次性制造或获得的；且
2. 由单一生产设备完成的；且
3. 按照被保险人惯用的生产和质量管控“批次”认定程序准备的。

第三条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Batch Claims Clause

Article 1. Any "bodily injury" or "property damage" shall be deemed to be one "accident" if it is

1. is included in the Product Hazard; and
2. by the same harmful condition, cause, defect, error or flaw; and
3. caused by the same "lot" of product manufactured or acquired by the insured.

The occurrence time of the "accident" shall be subject to the time when the first "personal injury" or "property loss" claim is filed against this "batch" of products.

Article 2 For the purpose of this clause, "lot" means a commodity or product that

1. is manufactured or obtained at one time within a period of time that meets the requirements of the insured's customary process; and
2. is completed by a single production facility; and
3. prepared in accordance with the insured's customary production and quality control "batch" determination procedures.

Article 3 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加强制性安全标准保险

（注册号 C00007830922022081117803）

第一条 被保险人保证被保险产品完全达到所销售或分销国家或地区的强制性安全标准以及其他相关法律法规规定。否则，由此导致的任何损失、费用或责任，保险人不负责赔偿。

第二条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Mandatory safety standard clause

Article 1 The insured guarantees that the insured products fully meet the mandatory safety standards of the country or region in which they are sold or distributed as well as other relevant laws and regulations. Otherwise, the insurer shall not be responsible for any loss, expense or liability resulting therefrom.

Article 2 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加最低应缴及预付保险费保险

(注册号 C00007830922022081117773)

第一条 无论本保险合同中是否另有相反约定，兹经双方同意并声明：

1. 在现行明细表所列明的保险费是预付的最低应缴保险费。在保险期间届满时，将按照保险合同中列明的保险费率，基于被保险人在保险期间的实际销售量对该保险费进行调整，而被保险人应当在保险期间届满时向保险人提供此类记录。对保险费的调整仅指根据保险期间的实际销售量计算得出的应缴保险费高于投保人预付的最低应缴保险费时，投保人应当补交差额；但根据保险期间的实际销售量计算得出的应缴保险费低于投保人预付的最低应缴保险费时，保险人不退还差额。

2. 如果本保险合同由投保人解除或由保险人因投保人未按约定支付保险费而解除，则在保险合同中列明的保险费应视为已赚保险费，应全额支付给保险人。除非保险人因投保人不支付保险费以外的其他原因而解除保险合同，保险人将不返还投保人该已赚保险费。如保险人按前述规定需返还保险费，则所退保险费应按未承保日比例计算。

第二条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Minimum Premium Payable and Premium Deposit Clause

Article 1 Notwithstanding anything to the contrary in this insurance contract, it is hereby agreed and declared by both parties that

1. The premiums stated in the current schedule are the minimum premiums payable in advance. At the end of the insurance period, such premiums will be adjusted in accordance with the premium rates stated in the insurance contract based on the actual sales

volume of the insured during the insurance period, and the insured shall provide such records to the insurer at the end of the insurance period. The adjustment to the premium shall only mean that if the premium payable based on the actual sales volume during the insurance period is higher than the minimum premium payable in advance by the insured person, the insured person shall pay the difference; however, if the premium payable based on the actual sales volume during the insurance period is lower than the minimum premium payable in advance by the insured person, the insurer shall not refund the difference.

2. If this insurance contract is terminated by the policyholder or by the insurer due to the policyholder's failure to pay the premiums as agreed, the premiums stated in the insurance contract shall be considered as earned premiums and shall be paid in full to the insurer. Unless the insurance contract is terminated by the insurer for reasons other than non-payment of premiums by the policyholder, the insurer shall not refund such earned premiums to the policyholder. If the insurer is required to return the premiums in accordance with the foregoing provisions, the refunded premiums shall be calculated in proportion to the uncovered days.

Article 2 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平责任保险附加保单取消保险条款（保险人 60 天，被保险人立即注销保单）

（注册号：C00007830922020082800252）

经双方同意，在保险期间内，保险人有权书面通知投保人解除本合同，但应当提前至少三十日通知投保人。本合同的效力自投保人收到保险合同解除通知书之日二十四时或者通知书上载明的合同终止时间（以较晚者为准）终止。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP policy cancellation clause

It is hereby declared and agreed that during the insurance period, the insurer has the right to notify the applicant in writing to terminate this contract, but shall notify the applicant at least 30 days in advance. The validity of this contract shall terminate at 24:00 on the date when the applicant receives the notice of termination of the insurance contract or the contract termination time

specified in the notice (whichever is later).

In case of any conflict between the additional insurance clause and the main insurance clause, the additional insurance clause shall prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid.

安盛天平责任保险附加保费支付保险条款（30 天）

（注册号：C00007830922020082709521）

经双方同意，全额保费必须在本保险单签发日或保险合同开始日起（以时间在后者为准），在双方约定的期限内支付，如逾期保险人有权自保险合同开始日起解除此保险单，同时不承担此保险单项下的任何责任。

但无论如何，如果保险人对约定期限内未收到保费没有提出书面异议，将不影响保险单的责任。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP Premium payment clause

It is hereby declared and agreed that the full premium must be paid within the time limit agreed by both parties from the issuance date of this insurance policy or the commencement date of the insurance contract (whichever is later). If it is overdue, the insurer has the right to terminate this insurance policy from the commencement date of the insurance contract and does not bear any liability under this insurance policy.

However, in any case, if the insurer does not raise a written objection to the failure to receive the premium within the agreed period, the liability of the insurance policy will not be affected.

In case of any conflict between the additional insurance clause and the main insurance clause, the additional insurance clause shall prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid.

安盛天平附加纯粹财务损失除外保险条款

(注册号: C00007830922020082800272)

兹经双方同意, 本保险单不适用于任何直接或间接因纯粹财务损失引起的责任。

纯粹财务损失是指由被保险人以外的第三方承担的并且因被保险人的业务或产品引起的金钱上的损失、成本或费用, 而且这种损失不是人身伤害或财产损失所引起的后果。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

Pure Financial Loss Exclusion

It is hereby understood and agreed that this insurance does not apply to any liability directly or indirectly arising out of pure financial loss.

"Pure financial loss" shall mean a pecuniary loss, cost or expense incurred by any person other than the Insured, resulting from the Insured's "business" and/or "products" where such loss is not as a consequence of "personal injury" or "property damage".

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加第三者纯粹间接性财务损失除外保险条款

(注册号: C00007830922020082800522)

兹经双方同意, 本保单保障不包括第三者遭受的任何纯粹的间接性的财务上的损失。该类损失包括但不限于经营利润的损失、财产的损失、损坏或不能使用等。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

Pure Indirect Financial Loss of Third-Party Exclusion

It is hereby understood and agreed that this insurance does not apply to any liability indirectly arising out of pure financial loss of a third party, including but not limited to loss of operation profit, loss of or damage to or loss of use of property.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加供应缺乏除外条款

（注册号：C00007830922020082800722）

经双方同意，本保险对任何直接或间接地因下列情形引起的、造成的、或与之有关的损失或责任不承担保险责任：

（1）因实际的或被指称的完全的或部分的油、气、电，或水的供应缺乏所引起的损害赔偿责任，包括任何因前述原因所引起的间接损失的赔偿。

（2）对灯火熄灭、部分灯火管制和电力冲击所承担的赔偿责任。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Failure to Supply Exclusion

It is hereby understood and agreed that this insurance does not apply to loss of or liability arising directly or indirectly out of, caused by or in connection with:

(1) liability for any damages arising out of actual or alleged, complete or partial failure to supply oil, gas, electricity or water, nor to any damages arising out of the consequential loss arising therefrom.

(2) liability for losses due to black outs, brown outs and power surges.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加功效除外保险条款

(注册号: C00007830922020082800692)

兹经双方同意,对于直接或间接地因被保险人的产品失灵,或被保险人所做的或者为被保险人所做的工作没能实现被保险人意欲完成的功能或目的所造成的、或与之有关的任何损失或责任,保险人不负责赔偿。

本附加险条款与主险条款相抵触之处,以本附加险条款为准;本附加险条款未约定事项,以主险条款为准。主险条款效力终止,本附加险条款效力亦同时终止;主险条款无效,本附加险条款亦无效。

AXATP Efficacy Liability Exclusion

It is agreed and understood that the Insurer shall not be liable for any loss or liability directly or indirectly caused by or in connection with the failure of Insured's "products" or the work completed by or for the Insured to achieve the function or purpose intended by the Insured.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加电磁辐射责任除外保险

(注册号 C00007830922022081620013)

第一条 本保险不适用于因声称暴露在或接触了“电磁辐射”而导致的“身体伤害”、“财产损失”或“个人伤害”。

本附加险条款中,“电磁辐射”包括但不限于:因电流的充电、电流、电频率、电能量产生、输送、分配或保留的磁性能量、磁性波、磁场。

第二条 本附加险条款与主险条款相抵触之处,以本附加险条款为准;本附加险条款未约定事项,以主险条款为准。主险条款效力终止,本附加险条款效力亦同时终止;主险条款无效,本附加险条款亦无效。

Electromagnetic Radiation Exclusion

Article 1 This insurance does not apply to "bodily injury", "property damage" or "personal injury" caused by alleged exposure or exposure to "electromagnetic radiation". Personal Injury".

For the purposes of this rider, "electromagnetic radiation" includes, but is not limited to, magnetic energy, magnetic waves, magnetic fields generated, transmitted, distributed or retained by the charging of electric currents, currents, electrical frequencies,

electrical energy.

Article 2 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加安装、维护及修理责任除外保险条款

(注册号: C00007830922020082709491)

经双方约定, 本保险不适用于由任何安装、维护或保养和修理“被保险人的产品”所直接或间接地产生的或以任何方式导致与之相关的人身伤害或财产损失的赔偿责任。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

Installation, Maintenance and Repair Exclusion

It is hereby understood and agreed that this insurance does not apply to any “personal injury” or “property damage” arising directly or indirectly out of, caused by or related to the installation, maintenance and repair of the Insured’s “product”.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加硅除外保险条款

(注册号: C00007830922020082800752)

兹经双方同意, 对于任何因接触、食用、吸入、吸收或暴露于含硅产品、硅石纤维、硅石粉尘或其他以任何形态存在的硅而导致的身体伤害或财产损失, 保险人不负责赔偿。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

AXATP Silicon Liability Exclusion

It is agreed and understood that the Insurer shall not be liable for any physical injury or property damage caused by contact, consumption, inhalation, absorption or exposure to silicon-containing products, silica fibers, silica dust or other silicon in any form.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加完全职业责任除外保险条款

(注册号: C00007830922020082801622)

兹经双方同意, 本保险不适用于有关于任何被保险人提供的或应提供而未提供的专业意见或服务, 或与之有关的任何错误或疏忽所导致的损失或责任。

另外, 若是有关被保险人或被保险人的授权代理人针对任何产品所提供的专业意见或服务, 且不收取服务费的情况, 保险人亦不负责赔偿。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

AXATP Total Professional Exclusion

It is agreed and understood that this insurance does not apply to any loss or liability in respect of the rendering of or failure to render professional advice or service provided by Insured error or omission connected therewith.

In addition, the Insurer shall not be liable for any professional advice or services rendered by the Insured or the Insured's authorized agent in respect of any product for which no service fee is charged.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加核能风险除外保险

(注册号 C00007830922022081117753)

第一条 由下列原因引起的任何损失、要求、索赔或诉讼，保险人不负责赔偿：

1. 核反应和/或核电站或核电厂；
2. 无论下列何种原因导致的处所或设备的损失：
 - 1) 核能的生产；或
 - 2) 核燃料或核废料的生产或储存或处理。

第二条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Nuclear Energy Risk Exclusion

Article 1 It is hereby understood and agreed that the insurer shall not be liable for any loss, demand, claim or action arising from below reasons:

1. Nuclear reactions and/or nuclear or nuclear power plants;
2. Loss of premises or equipment caused by any of the following:
 - 1) The production of nuclear energy; or
 - 2) Production or storage or disposal of nuclear fuel or waste.

Article 2 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加铅除外保险条款

(注册号：C00007830922020082800292)

经双方同意，本保险单不适用于因被保险人的产品、商品或其包装含有任何形态（固体、液体气体）的铅造成使用、消费或操作该产品或商品的人或其他任何人的伤害、疾病、死亡或财产损失，对于上述损失，无论被保险人是否依法应承担赔偿责任，保险人均不负责赔偿。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP Lead Exclusion

It is hereby agreed that this Policy does not apply to personal injury, disease, death or property loss of the person using, consuming or operating the product or commodity or any other person due to the presence of any form (solid, liquid or gas) of lead in the insured product, commodity or its packaging, the Insurer shall not be held liable regardless of whether the insured shall be liable for compensation according to law.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加制裁限制除外保险条款（B款）

（注册号：C00007831922022011303661）

第一条 经双方同意，保险人不应当被认为对下列情形提供任何保险保障或负责支付任何索赔或提供任何利益：如提供该任何保险保障、支付该任何索赔或者提供该任何利益会使保险人受到联合国决议或者中国、欧盟、英国或美国的贸易或经济制裁、法律或法规下的任何制裁、禁令或者限制。

第二条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险效力终止，本附加险效力亦同时终止；主险无效，本附加险亦无效。

Sanctions Exclusion Clause

The Company shall not be deemed to provide cover and shall not be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose the Company to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the P.R.C, European Union, United Kingdom or United States.

安盛天平责任保险附加恐怖活动除外保险条款

(注册号: C00007830922020082800392)

经双方同意,本保险单对任何恐怖活动直接或间接造成的任何性质的损失、损坏或费用不负赔偿责任,而无论是否有其他因素同时或相继促成了此损失、损坏或费用的发生。本保单对旨在控制、避免或镇压恐怖活动而采取的相关行动直接或间接造成的损失、损坏或费用亦不负赔偿责任。

本保险单所指恐怖活动包括但并不局限于单独或代表或与任何组织或政府相关联的任何个人、团体采用武力、暴力或胁迫以政治、宗教、意识形态或种族等为目的旨在影响政府行为而使公众或公众的任何部分处于恐惧状态的活动。

本附加险条款与主险条款相抵触之处,以本附加险条款为准;本附加险条款未约定事项,以主险条款为准。主险条款效力终止,本附加险条款效力亦同时终止;主险条款无效,本附加险条款亦无效。

AXATP Terrorism Exclusion

It is agreed that this Policy does not apply to loss, damage or expense directly or indirectly caused by any act of terrorism regardless of whether other factors have contributed simultaneously or successively to the occurrence of such loss, damage or expense. This Policy also does not apply to loss, damage or expense of directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing, suppressing any act of terrorism.

An act of terrorism refers to an act, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organization(s) or government(s), committed for political, religious, ideological racial or similar purposes, aiming at influencing any governmental act and/or to put the public, or any section of the public, in fear.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平责任保险附加网络与数据风险除外保险条款

(注册号: C00007830922022011877853)

第一条 尽管本保险合同有相反规定,对于任何直接或间接由以下原因引起、促成、导致的任何性质的损失、损害、责任、索赔、

罚款、处罚、成本或支出，无论下述原因是否因任何其他原因或事件同时或以任何其他顺序而造成，保险人均不承担赔偿责任。

1、网络行为或网络事件，包括但不限于为了控制、预防、制止或补救有关网络行为或网络事件而采取的任何行动；

2、数据（及其附加价值）的无法使用、功能减少、修复、更换、恢复、复制、丢失或被盗。

第二条 释义

【计算机系统】指任何计算机、硬件、软件、通信系统、电子设备(包括但不限于智能手机、笔记本电脑、平板电脑、可穿戴设备)、服务器、云端或微控制器，包括上述任何类似系统或任何配置，也包括任何相关的输入、输出、数据存储设备、被保险人或任何其他方所使用或经营的网络设备或备用设施。

【网络行为】指不论任何时间和地点，受到威胁、欺骗而产生的未经授权的、恶意的、违法的访问、处理、使用或操作任何计算机系统的行为（或一系列相关的未经授权的、恶意、违法的上述行为）。

【网络事件】指：

1、涉及访问、处理、使用、操作任何计算机系统的任何错误或疏漏（或一系列相关错误或疏漏）

2、涉及访问、处理、使用、操作任何计算机系统的全部或部分无法使用或故障（或一系列相关的无法使用或故障）。

【数据】指通过计算机系统的使用、访问、处理、传输、存储的形式记录或传输的任何种类或形式的信息、事实、概念、代码或任何其他信息。

第三条 本附加险条款中的任何部分内容无效或不可执行，其余部分仍完全有效。本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险效力终止，本附加险效力亦同时终止；主险无效，本附加险亦无效。

CYBER and DATA TOTAL EXCLUSION ENDORSEMENT

1 Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:

1.1 Cyber Act or Cyber Incident including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any Cyber Act or Cyber Incident; or

1.2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any Data, including any amount pertaining to the value of such Data;

regardless of any other cause or event contributing concurrently or in any other sequence thereto.

1 In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

2 This endorsement supersedes any other wording in the Policy or any endorsement thereto having a bearing on a Cyber Act, Cyber Incident or Data, and, if in conflict with such wording, replaces it.

2 If the Underwriters allege that by reason of this endorsement that loss sustained by the Insured is not covered by this Policy, the burden of proving the contrary shall be upon the Insured.

Definitions

3 Computer System means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

4 Cyber Act means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any Computer System.

5 Cyber Incident means:

5.1 any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any Computer System; or

5.2 any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any Computer System.

6 Data means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a Computer System.

安盛天平附加法定惩罚性损害赔偿除外保险

(注册号 C00007830922022081117783)

第一条 兹经双方了解并同意，本保险合同不承保罚款或类似的支付，包括惩罚性赔偿，而不论其是否付给公共当局、民间个人或团体。

第二条 本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

Statutory Punitive Damages Exclusion

Article 1 It is hereby understood and agreed that this insurance contract does not cover fines or similar payments, including punitive damages, whether or not paid to public authorities, private individuals or groups.

Article 2 Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加污染除外保险条款

（注册号：C00007830922020082801392）

经双方同意，本保险单不适用于下列原因导致的任何损失或费用，对下述损失或费用，无论被保险人是否依法应承担赔偿责任，本公司均不负责赔偿：

- 1.在世界任何地域范围内因实际或潜在污染物流出、扩散、释放或泄漏引起的任何人身伤害或财产损失；
- 2.被保险人或其他任何个人或组织应政府之指令或要求检测、监控、清理、清除、控制、处理、去除或压制污染物而导致的任何损失、成本或费用；
- 3.任何政府部门、个人或组织因检测、监控、清理、清除、控制、处理、去除或压制污染物而导致的任何损失、成本或费用，包括但不限于调查费用或代理费用；

“污染物”指任何固态、液态、气态的或热量状态下的刺激物或污染物，包括烟、汽、灰、浓烟、酸、碱、化学物质和废弃物。废弃物包括将要或已经被循环利用的、被重新处理的和被回收的物质。

本附加险条款与主险条款相抵触之处，以本附加险条款为准；本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP Absolute Pollution Exclusion Endorsement

Whether legally obliged or not, this Policy does not apply to any loss or expense in connection with:

- A. any personal injury or property damage arising out of the actual or threatened discharge, dispersal, release or escape of pollutants, any where in the world;
- B. any loss, cost or expense arising out of any governmental direction or request that the Insured, or any other person or organization test for, monitor, clean-up, remove, contain, treat, detoxify or neutralize pollutants;
- C. any loss, cost or expense, including but not limited to costs of investigation or attorneys' fees, incurred by a governmental department or any other person or organization to test for, monitor, clean-up, remove, contain, treat, detoxify or neutralize pollutants.

"Pollutants" refers to any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste material. Waste materials includes materials which are intended to be or have been recycled, reconditioned or reclaimed.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加石棉责任除外保险条款

(注册号: C00007830922020082801102)

经双方同意, 本保险单不适用于由石棉制品或含有石棉成分的物质引起的或与此相关的任何损失、要求、索赔或诉讼, 保险人对此类损失、要求、索赔或诉讼不承担任何赔偿责任。

本附加险条款与主险条款相抵触之处, 以本附加险条款为准; 本附加险条款未约定事项, 以主险条款为准。主险条款效力终止, 本附加险条款效力亦同时终止; 主险条款无效, 本附加险条款亦无效。

AXATP Asbestos Exclusion

It is hereby agreed that this Policy does not apply to any loss, demand, claim or suit arising out of or related in any way to asbestos or asbestos-containing materials, the Insurer shall not be liable for such loss, demand, claim or suit of any kind.

Any discrepancies between this additional clause and main clause, this additional clause shall prevail. Any unstipulated matter in this additional clause shall be subject to the main clause. This additional clause shall be terminated at the same time with the termination of the main clause. This additional clause shall be invalid, if the main clause is deemed to be invalid.

安盛天平附加全氟和多氟烷基物质除外保险条款

注册号：C00007830922024122701813

第一条 兹经双方同意，本保险不承保任何直接或间接源自、产生、导致的或与全氟和多氟烷基物质有任何实际的、声称的、受到威胁的或疑似相关的任何责任：

（一）设计、开发、制造、储存、加工、包装、处理、测试、监测、分销、销售、营销、推广、使用、移除、消减、遏制、治理、解毒、中和、运输或处置相关的（无论直接或间接）任何其他活动；

（二）摄入、吸收、吸入、消耗、应用、存在、在场、来自或与之相关(无论直接或间接)、接触或暴露于；或

（三）给予或提供，或未能给予或提供任何指导、监督、指示、建议、陈述、保证、警告或建议或与之相关（无论直接或间接）。

第二条：本附加条款适用于：

（一）任何被保险人或任何其他个人或实体设计、开发、制造、储存、加工、包装、处理、测试、监测、分销、销售、营销、推广、使用、移除、消减、遏制、治理、解毒、中和、运输或处置，或从事与全氟和多氟烷基物质 (直接或间接)有关或相关的任何其他活动；或

（二）任何实际的、声称的、受到威胁的或疑似的摄入、吸收、吸入、消耗、应用、存在或在场、来自或与之相关(无论是直接或间接)、接触或暴露于全氟和多氟烷基物质，同时或以任何顺序，导致或造成任何伤害、损害或损失。

第三条 定义

全氟和多氟烷基物质 是指含有一个或多个碳原子且其中的至少一个氢取代基已被氟原子取代的任何氟化有机物质，或者是全氟或多氟烷基醚类物质。 仅在适用本保险合同之时， 全氟和多氟烷基物质除了前述的所有物质（以及每种物质的共轭酸及其任何盐、衍生物、异构体或其组合）之外，还包括但不限于全氟辛酸羧酸、 全氟和多氟烷基羧酸（及其任何盐）、全氟和多氟烷基卤化物、全氟和多氟烷基醇、全氟和多氟烷基烯烃、全氟和多氟烷基磺酰氟（包括其任何酸和盐）、全氟烷基碘化物、全氟和多氟烷基醚类物质、含氟聚合物、全氟聚醚、全氟和多氟烷烃、侧链氟化芳烃、全氟和多氟磷酸盐和膦酸盐、全氟和多氟磺酰胺、全氟和多氟聚氨酯、以及所有此类物质的化学前体和降解产物，包括氟化单体、聚合物和侧链氟化聚合物以及所有此类物质的代谢

物。

第四条 除非本附加险条款另有定义，本附加险条款中斜体字的术语应与主险条款中规定的定义相同。

第五条 若本附加险条款与主险条款的任何条款、除外责任和条件互有冲突，则以本附加险条款为准。本附加险条款未约定事项，以主险条款为准。主险条款效力终止，本附加险条款效力亦同时终止；主险条款无效，本附加险条款亦无效。

AXATP PFAS Exclusion clause

1. This insurance does not apply to any liability based upon, arising out of, resulting from, or related to (whether directly or indirectly) any actual, alleged, threatened, or suspected: i) design, development, manufacture, storage, processing, packaging, handling, testing, monitoring, distribution, sale, marketing, advertising, use, removal, abatement, containment, treatment, detoxification, neutralization, transportation, or disposal of, or any other activity in connection with or related to (whether directly or indirectly); ii) ingestion, absorption, inhalation, consumption, application, existence, or presence of, from, or related to (whether directly or indirectly), or contact with, or exposure to; or iii) giving or providing, or failing to give or provide, any direction, supervision, instruction, recommendation, representation, warranty, warning, or advice in connection with or related to (whether directly or indirectly), 2. This exclusion applies regardless of whether: i) any Insured or any other person or entity designed, developed, manufactured, stored, processed, packaged, handled, tested, monitored, distributed, sold, marketed, advertised, used, removed, abated, contained, treated, detoxified, neutralized, transported, or disposed of, or engaged in any other activity in connection with or related to (whether directly or indirectly), PFAS; or ii) any actual, alleged, threatened, or suspected ingestion, absorption, inhalation, consumption, application, existence, or presence of, from, or related to (whether directly or indirectly), or contact with, or exposure to PFAS, concurrently or in any sequence, contributed to or caused any injury, damage, or loss. 3. Definition PFAS includes any fluorinated organic substance that contains one or more carbon atoms on which at least one of the hydrogen substituents has been replaced by a fluorine atom or is a per- or polyfluoroalkyl ether based substance. Solely for purposes of this Policy, "PFAS" also includes, in addition to all substances described in the preceding sentence (along with each substance's conjugate acid and any salts, derivatives, isomers, or combinations thereof), perfluorooctanoic acid ("PFOA"), per- and polyfluoroalkyl acids (and any salts thereof), per- and polyfluoroalkyl halides, per- and polyfluoroalkyl alcohols, per- and polyfluoroalkyl olefins, per- and polyfluoroalkane sulfonyl fluorides (including any acids and salts thereof), perfluoroalkyl iodides, per- and polyfluoroalkyl ether-based substances, fluoropolymers, perfluoropolyethers, per- and polyfluoroalkanes, side-chain fluorinated aromatics, per- and polyfluorinated phosphates and phosphonates, per- and polyfluorinated sulfonamides, per- and polyfluorinated urethanes, and chemical precursors and degradation products of all such substances, including fluorinated monomers, polymers and side-chain fluorinated polymers and metabolites of all such substances. 4. Unless otherwise defined in

this additional Insurance clause, the terms in italics in this additional insurance clause shall be the same as those defined in the main insurance clause. 5. In case of any conflict between the additional insurance clause and any terms, exclusions and conditions of the main insurance clause, the additional insurance clause shall prevail; For matters not agreed in this additional insurance clause, the main insurance clause shall prevail. The effectiveness of the main insurance clause shall be terminated, and the effectiveness of the additional insurance clause shall also be terminated at the same time; The main insurance clause is invalid, and this additional insurance clause is also invalid. All other terms, definitions, conditions, and exclusions of this Policy remain unchanged.